

**Harvard Federal Credit Union
EDUCATION LOAN
PROMISSORY NOTE**

In this **Application** and **Promissory Note**, the words *I, me, we, my, and mine* mean the **Student Borrower** and the **Cosigner**, whose liability is joint and several. The words *you, your, yours, and Lender* mean **Harvard Federal Credit Union**, its successors and assigns, and any other holder of this **Application** and **Promissory Note**. The **School** means the school identified in the **Application**.

1. Promise to Pay

I promise to pay to you under the terms of this **Promissory Note** (the **Note**), the total principal sum of the **Loan** amount shown on the **Final Disclosure Statement**, which includes amounts disbursed under the terms of this **Note**, and, as set out below, interest on such principal sum (including any prepaid finance charge), interest on any unpaid interest added to the principal balance following disbursement, interest on any other amounts added to the principal balance following disbursement (including the **Loan Origination Fee**), loan fees, late charges, returned payment charges and other fees, and charges and costs as provided in this **Note** and the **Final Disclosure Statement** which is incorporated into this **Note** by its reference herein, to the extent permitted by law.

2. Important - Read This Carefully

2.1 When you receive my signed **Application**, you are not agreeing to lend me money. If you decide to make a loan to me, the **School** in its sole discretion will select the disbursement method. The **School** will either request a loan check that is co-payable to me and to the **School** or request the funds to be electronically transferred to an account designated by the **School**. You have the right not to make a **Loan**, not to make a disbursement on a **Loan**, or to lend an amount less than the **Loan Amount Requested**. I agree to accept an amount less than the **Loan Amount Requested** and to repay that portion of the **Loan Amount Requested** that you actually lend to me.

2.2 If you approve my **Application** and offer to make a **Loan** to me, you will send me an **Approval Disclosure Statement** upon approval of my **Application**. Among other things, the **Approval Disclosure Statement** will disclose to me the total amount of my **Loan** and the amount of my disbursement(s), my initial interest rate and the amount of any fees (including a **Loan Origination Fee**) that may be assessed. If the amount of the **Loan** is reduced because the cost of attendance at the **School** has decreased (or my financial aid has increased) you may reduce the **Loan** amount without sending me a new **Approval Disclosure Statement**. If I accept your loan offer, you will send me a **Final Disclosure Statement** which includes (among other things), information on my right to cancel the **Loan**.

In addition to other information, the **Disclosure Statements** will tell me my initial interest rate. The **Final Disclosure Statement** is incorporated herein by reference.

2.3 HOW I AGREE TO THE TERMS OF THIS LOAN - By preparing and signing this **Note**, and submitting it to you, either directly or through another person or marketing entity, including such preparation, execution and submission by electronic means, I am requesting that you make this **Loan** to me in the **Loan Amount Requested** set forth in the **Application** and on the terms described on this **Note**, and agree you have provided the **Private Education Loan Application** and **Solicitation Disclosure Statement** to me. If you approve this request and agree to make this **Loan**, you will notify me in writing and provide me with an **Approval Disclosure Statement**, as required by law. The **Approval Disclosure Statement** will tell me the amount of the **Loan** that you have approved, the amount of the **Prepaid Finance Charges**, the date by which I must accept the loan offer that you have made, and other important information. I understand that you may not approve my **Application** or that you may approve my **Application** for an amount less than the **Loan Amount Requested**. I will let you know that I agree to the terms of the **Loan** as set forth in this **Note** and the **Approval Disclosure Statement** by accepting the loan offer that you make in the manner specified in the **Approval Disclosure Statement**. I understand that I will have **thirty (30)** days after I receive the **Approval Disclosure Statement** in which to accept the **Loan**. If I wish to accept the loan offer I understand that I must deliver the notice of my acceptance in the manner that is specified in the **Approval Disclosure Statement**. If I do not accept the loan offer I understand that my **Application** will be considered cancelled and you will not make the **Loan** to me. After I accept the loan offer, you will send me a **Final Disclosure Statement** that will tell me how to cancel the **Loan** if I choose to do so. The **Final Disclosure Statement** will be sent before the **Loan** funds are to be disbursed. I understand that if I or the Cosigner cancels the **Loan** before the end of the cancellation period set forth in the **Final Disclosure Statement** that no **Loan** proceeds will be disbursed and the **Loan** will be cancelled. I understand that the **Loan** may not be cancelled after the end of the cancellation period.

3. Definitions

3.1 Application means the written, Internet-based, or oral, including telephonic, request that I make to you for a **Loan**.

3.2 Approval Disclosure Statement means the Private Education Loan Approval Disclosure Statement as required by the Federal Truth-in-Lending Act and the Massachusetts Consumer Credit Cost Disclosure Act and their implementing regulations.

3.3 Capitalized Interest means accrued and unpaid interest that you add to the principal balance of a **Loan**.

3.4 Cosigner Notice means any notice that describes the obligations of a Cosigner under the **Note** and that is contained in the **Note** signed by the joint and severally liable Cosigner with respect to the **Loan**.

3.5 Disbursement Date means the date or dates on which you lend money to me in consideration for this **Note** and will be the date or dates of my loan check or, at your sole discretion, the electronic funds transfer of my **Loan** funds.

3.6 Disclosure Statements means, collectively, the **Approval Disclosure Statement** and the **Final Disclosure Statement**.

3.7 Final Disclosure Statement means the Private Education Loan Final Disclosure Statement as required by the Federal Truth-in-Lending Act and the Massachusetts Consumer Credit Cost Disclosure Act and their implementing regulations.

3.8 Interim Period means the period beginning on the **Disbursement Date** and ending on the date which is 9 months after the **Student Borrower** graduates or ceases to be enrolled on at least a half-time basis at the **Student Borrower's School**, but, in any event, no longer than 57 months.

3.9 Loan means the loan described in the **Disclosure Statements** and that I have accepted, including all principal sums disbursed, plus interest on such principal sums, interest on any **Capitalized Interest**, interest on any amounts added to my principal balance following disbursement (including the **Loan Origination Fee**) and other charges and fees that may become due as provided in this **Note**.

3.10 Loan Amount Requested means the dollar amount of the **Loan** requested at the time of my **Application**. You may increase the **Loan Amount Requested** by the amount necessary to pay the **Loan Origination Fee**.

3.11 Loan Origination Fee means the fee charged to the **Student Borrower** for the origination of the **Loan**. The amount of the **Loan Origination Fee** shall be disclosed on the **Final Disclosure Statement**.

3.12 Note means this Promissory Note setting forth the terms applicable to my **Loan**. The term **Note** also includes the **Application**, **Final Disclosure Statement**, and **Cosigner Notices** (if applicable), relating to the **Loan** that I obtain subject to the terms of this **Note**, unless otherwise provided.

3.13 Repayment Period means the period that begins immediately after the **Interim Period**, if any, and continues for the term stated in the **Final Disclosure Statement**. If there is no **Interim Period**, the **Repayment Period** begins on the **Disbursement Date**.

4. Interest

4.1 Accrual - Beginning on the first **Disbursement Date**, interest on this **Note** will be calculated at the rate disclosed to me in the **Final Disclosure Statement**. Interest will be calculated on the principal balance advanced, and on any unpaid interest added to principal according to paragraph **4.2** until the **Note** is paid in full. Interest will be calculated on a daily simple interest basis, according to the outstanding principal balance each day of the term of the **Loan**. The daily interest rate will be equal to the annual interest rate in effect on that day, divided by the number of days in that calendar year.

4.2 Capitalization - I agree that you will add the **Loan Origination Fee**, if applicable, to the principal balance of my **Loan** on the **Disbursement Date**, and any accrued and unpaid interest to the principal balance of my **Loan** at the start of the **Repayment Period**. You may, at your option, add all accrued and unpaid interest to the principal balance of my **Loan** at the end of any forbearance period. In addition, if I am in default under this **Note**, you may, at your option, add any unpaid interest, late charges, return payment fees or other charges outstanding at the time of default

to the principal amount of my **Loan**, to the extent permitted by law. Such **Capitalized Interest** and **Loan Origination Fee** are thereafter considered principal, and interest will accrue on the new principal balance.

- 4.3 Interest Accrual after Default and Maturity** - If I default under the terms of this **Note**, the unpaid **Loan** balance will continue to accrue interest at the applicable rate in accordance with the terms of this **Note**. Similarly, if I have an unpaid **Loan** balance at the end of the **Repayment Period** interest will continue to accrue on this amount at the applicable rate in the manner provided in this **Note** until I pay all that I owe.

- 4.4 Annual Percentage Rate (APR)** - The **APR** for my **Loan** will be disclosed to me on my **Final Disclosure Statement**. I understand that the **APR** may be higher than the applicable interest rate described above because the **APR** will include fees that are charged on my **Loan** as well the rate at which interest will accrue.

5. Terms of Repayment

5.1 Interim Period - During the **Interim Period** you may, but are not required to, send the **Student Borrower** monthly statements (showing the total of my loan disbursements and the interest that accrues on my **Loan**). Statements will be sent to the address shown on your records. I may make, but am not required to make, payments during the **Interim Period**. You will add any interest that I do not pay during the **Interim Period** to the principal balance, as described in paragraph **4.2**.

5.2 Repayment Period - During the **Repayment Period** I will make consecutive monthly payments **(a)** in the amounts indicated and **(b)** by the payment due dates shown on statements you will send or otherwise make available to the **Student Borrower**, until I have paid all of the principal and interest and any other charges I may owe under this **Note**.

5.3 Repayment Terms During the Repayment Period – My monthly payment will be established based on the rules in this **Note**. The amounts shown on my monthly statements will be consecutive monthly installments of principal and interest equal to the amount necessary to amortize the unpaid principal balance (including any **Capitalized Interest**) of my **Loan** (as of the date of calculation) in equal monthly installments of principal and interest at the interest rate then in effect over the number of months remaining in the **Repayment Period**.

5.4 Minimum Repayment – Notwithstanding paragraph **5.3**, I agree to pay at least **\$50** each month (principal and interest) or the unpaid balance, whichever is less. I understand that this may result in my **Loan** being paid off in less than the agreed upon term. The minimum payment may also be increased if I participate in a support program that requires a shorter amortization period.

5.5 Amounts Owed at the End of the Repayment Period - Since interest accrues daily upon the unpaid principal balance of my **Loan**, if I make payments after my payment due dates, I may owe additional interest. If I have not paid my fees and charges, I will also owe those additional amounts. In such cases you will increase the amount of my last monthly payment to the amount necessary to repay my **Loan** in full.

5.6 Payments - Payments will be applied first to late charges, other fees and charges, then to accrued interest, and the remainder to principal.

5.7 Other Charges - If any part of a monthly payment remains unpaid for a period of more than **15** days after the payment due date, I will pay a late charge of an amount equal to 5% of the unpaid payment amount not exceeding **\$15** for each late payment up to the amount permitted by law. I may also be required to pay a returned payment charge stated in the **Final Disclosure Statement** for each payment on this **Note** returned for any reason, including but not limited to insufficient funds or stop payment order. You may change these charges by giving me the notice required by law. The charges stated in the **Final Disclosure Statement** will remain in effect until such notice is given.

6. Right to Prepay

I have the right to prepay all or any part of my **Loan** at any time without penalty. Any partial prepayment will be credited against my principal balance and will not reduce the next payment due on my **Loan**.

7. Forbearance

If I am unable to repay my **Loan** in accordance with the terms established under this **Note**, I may request that you modify these terms. I understand that such modification would be at your sole discretion, and may be subject to any requirements that you may establish. I understand that I will remain responsible for all interest accruing during any period of forbearance and that you will add any interest that I do not pay during any forbearance period to the principal

balance as described in paragraph 4.2. The **Cosigner** agrees that the **Student Borrower** may be granted a forbearance without obtaining the consent of the **Cosigner**.

8. Default

To the extent permitted by applicable law, I will be in default if any of the following happens:

- 8.1 I fail to make any payment when due;
- 8.2 I break any promise I have made to the **Lender** in this **Note** or any other agreement with the Lender;
- 8.3 There is any material adverse change in my financial condition;
- 8.4 I or any **Cosigner** dies, becomes insolvent, or makes an assignment for the benefit of creditors, a receiver is appointed for me or my property, or a petition for bankruptcy is commenced by or against me;
- 8.5 Any information or representation I make on any application or agreement with the **Lender** is not true; or
- 8.6 I fail to maintain membership in good standing with the **Lender**.

If I am in default, you have several remedies. You may refuse to disburse additional loan funds. You may require me to repay immediately all amounts I owe you on this **Note** or on any other loan owed to you. You may place my **Loan** account with a collection agency. You may also sue me for repayment of my **Loan**. You may set off my liability on this **Note** against any of my deposits or property held by you or any of your affiliates (except for 401k and/or IRA accounts). You do not have to give me any notice of the choice of remedy and may use any or all of your remedies. In addition to your remedies, you may report an event of default to the **School**, who under its applicable policies may refuse my re-admission or re-enrollment to School, and may also withdraw alumni privileges including but not limited to access to online services, school networks, and official transcripts, unless otherwise prohibited by law. I understand that if my **Loan** is in default that I will remain obligated to pay interest on the **Loan** that may accrue after default. I also understand that the interest rate will be subject to adjustment in the same manner as before the default occurred. I also understand that you may, at your option, add interest that accrues after default to the principal balance of my **Loan** in accordance with the terms of this **Note**.

9. Collection Costs

If I am in default, I agree to pay your costs in enforcing this **Note** and collecting any amounts I owe. Your costs include, to the extent permitted by applicable law, reasonable attorneys' fees if you hire an attorney who is not your salaried employee, and legal expenses incurred whether or not a lawsuit is commenced, plus the fees of any collection agency which may be based on a percentage at a maximum of **thirty-three percent (33%)** of the debt and court costs and other costs and expenses and all other reasonable sums allowed by law and which you incur in such collection efforts. Attorneys' fees and legal expenses include those related to bankruptcy proceedings (including efforts to modify or vacate any automatic stay), trials, appeals, and any required by your post-judgment collection efforts.

10. Notices

- 10.1 I will send written notice to you, or any subsequent holder of this **Note**, within **10** days after any change in my name, street address, email address or phone number or the **Student Borrower's** college enrollment status.
- 10.2 Any notice required to be given to me by you will be effective when mailed by first class mail or sent by electronic mail to the latest address you have for me. Unless required by applicable law, you need not give a separate notice to the **Cosigner**, if any.

11. Privacy

- 11.1 You may report information about my account to credit bureaus. Late payments, missed payments, or other defaults on my account may be reflected in my credit report.
- 11.2 I must update the information on my Application whenever you ask me to do so.
- 11.3 I authorize you from time to time to request and receive from others credit-related information about me (and about my spouse if I live in a community property state).

11.4 I agree to notify you in writing as soon as the **Student Borrower** is no longer attending the **School** named in the **Application**.

11.5 I agree to refer to your **Privacy Policy** for an explanation of your privacy policy and practices.

12. Additional Agreements

12.1 I understand that this **Note** will be entered into in the state where you are located, and I agree that THE PROVISIONS OF THIS **NOTE** WILL BE GOVERNED BY FEDERAL LAW AND THE LAW OF THE COMMONWEALTH OF MASSACHUSETTS, WITHOUT REGARD TO CONFLICT OF LAWS RULES.

12.2 This **Note** is a sealed instrument.

12.3 The proceeds of this **Loan** will be used only for my educational expenses at the **School** listed on the **Application**. The **Cosigner**, if any, will not receive any of the **Loan** proceeds.

12.4 My responsibility for paying this **Note** is unaffected by the liability of any other person to me or by your failure to notify me that a required payment has not been made. You may delay, fail to exercise, or waive any of your rights on any occasion without losing your entitlement to exercise the right at any future time, or on any future occasion. You will not be obligated to make any demand upon me, send me any notice, present this **Note** to me for payment or make protest of non-payment to me before suing to collect on this **Note** if I am in default, and to the extent permitted by applicable law, I hereby waive any right I might otherwise have to require such actions. Without losing any of your rights under this **Note**, you may accept late payments or partial payments. **I WILL NOT SEND YOU PARTIAL PAYMENTS MARKED PAID IN FULL, WITHOUT RECOURSE OR WITH OTHER SIMILAR LANGUAGE UNLESS THOSE PAYMENTS ARE MARKED FOR SPECIAL HANDLING AND SENT TO THE LOAN SERVICER, UAS (University Accounting Services), PO Box 918, Brookfield, WI, 53008-0918, OR TO SUCH OTHER ADDRESS AS I MAY BE GIVEN IN THE FUTURE.**

12.5 I may not assign this **Note** or any of its benefits or obligations. You may assign this **Note** at anytime.

12.6 The terms and conditions set forth in my **Note**, including the **Application** and **Final Disclosure Statement** and **Cosigner Notice**, constitute the entire agreement between you and me.

12.7 If any provision of this **Note** is held invalid or unenforceable, that provision shall be considered changed to the extent necessary to make such position valid and enforceable, and such change shall not affect the validity or enforceability of the remainder of this **Note**. If you decline to enforce any provision of this **Note**, we understand that it does not constitute a waiver of your right to enforce that provision in the future. I understand that only those waivers of the terms and conditions of this **Note** signed by you are effective.

12.8 A provision of this **Note** may only be modified if jointly agreed upon in writing by you and me. Any modification will not affect the validity or enforceability of the remainder of this **Note**.

12.9 I authorize any **School** that I attend or have attended to release, to you and others designated by you, any requested information pertinent to this **Loan** (e.g. enrollment status, prior loan history, current address, email address, employer and telephone number(s)).

12.10 I authorize the **Lender**, any subsequent holder, or their agents to: (1) respond to inquiries from prior or subsequent lenders or holders with respect to my **Note** and related documents; (2) release information and make inquiries to the persons I have listed in my **Application** as references, for the purposes of learning my current address and telephone number; (3) check my credit and employment history from time to time while my **Loan** is outstanding and to answer questions about their credit experience with me; and (4) in the event of default, release information to my **School** about the status of my defaulted **Loan**.

12.11 You and I agree that if I use an electronic signature to agree to the terms of this **Note** that this **Note** shall be deemed a credit agreement and shall not be considered a promissory note as defined by and subject to Article 3 of the Uniform Commercial Code as enacted in Massachusetts or any other state and that the transfer of this Note, or any interest therein, shall be governed by Article 9 of the Uniform Commercial Code as enacted in Massachusetts.

12.12 I acknowledge that my **Loan** may be subject to the limitations on dischargeability in bankruptcy established by Section 523(a) (8) of the U.S. Bankruptcy Code.

12.13 I authorize you and your agents to verify my Social Security number with the Social Security Administration (SSA) and, if the number on my **Loan** record is incorrect, then I authorize SSA to disclose my correct Social Security number to you and your agents.

12.14 I understand that my **Loan** may be sold while a balance remains outstanding. Any such sale will not result in any change to my **Loan** terms.

12.15 The **Student Borrower** understands that a failure to complete (for any reason) the education program or course of study paid for with the proceeds of this **Loan** does not relieve his/her obligations under the terms of this **Note**.

12.16 I understand that I become obligated to pay a **Loan Origination Fee** to you at the time the **Loan** proceeds are disbursed. The amount of the **Loan Origination Fee** is disclosed to me on the **Final Disclosure Statement**. The amount of the **Loan Origination Fee** will be added to the principal balance of my **Loan** as described in paragraph 4.2. You may increase the **Loan Amount Requested** on my **Application** by the amount necessary to pay the **Loan Origination Fee**. If I prepay this **Loan** in full or in part, I will not be entitled to any refund of any part of the **Loan Origination Fee**, unless otherwise required by applicable law.

13. Student Borrower's and Cosigner's Certification

I declare under penalty of perjury under the laws of the **United States of America** that the following is true and correct. I certify that the information contained in my **Application** and **Note** is true, complete and correct to the best of my knowledge and belief and is made in good faith. I certify that the proceeds of this **Loan** will be used for educational purposes for the academic period stated in my **Application** at the **School** named on the **Application**. I understand that I am responsible for repaying immediately any funds that I receive which are not to be used or are not used for educational expenses related to attendance at the School for the academic period stated. I understand that with very few exceptions, private student loans may not be discharged in US bankruptcy proceedings.

14. State Disclosure Notices

NOTICE

ANY HOLDER OF THIS CONSUMER CREDIT CONTRACT IS SUBJECT TO ALL THE CLAIMS AND DEFENSES WHICH THE DEBTOR COULD ASSERT AGAINST THE SELLER OF GOODS OR SERVICES OBTAINED WITH THE PROCEEDS HEREOF. RECOVERY HEREUNDER BY THE DEBTOR SHALL NOT EXCEED AMOUNTS PAID BY THE DEBTOR HEREUNDER.

NOTICE TO CONSUMER. 1. DO NOT SIGN THIS NOTE BEFORE YOU READ THIS NOTE. 2. YOU ARE ENTITLED TO A COPY OF THIS PAPER. 3. YOU MAY PREPAY THE UNPAID BALANCE AT ANY TIME WITHOUT PENALTY AND MAY BE ENTITLED TO A REFUND OF UNEARNED CHARGES IN ACCORDANCE WITH LAW.

FOR ALABAMA RESIDENTS (For purposes of the following notice, the word *you* refers to the **Borrower** and the **Cosigner**, if applicable, not the **Lender**): **CAUTION - IT IS IMPORTANT THAT YOU THOROUGHLY READ THE CONTRACT BEFORE YOU SIGN IT.**

IOWA, KANSAS AND NEBRASKA RESIDENTS: For purposes of the following notice, the word *you* refers to the **Borrower** and the **Cosigner**, if applicable, not the **Lender**: **IMPORTANT; READ BEFORE SIGNING. THE TERMS OF THIS AGREEMENT SHOULD BE READ CAREFULLY BECAUSE ONLY THOSE TERMS IN WRITING ARE ENFORCEABLE. NO OTHER TERMS OR ORAL PROMISES NOT CONTAINED IN THIS WRITTEN CONTRACT MAY BE LEGALLY ENFORCED. YOU MAY CHANGE THE TERMS OF THIS AGREEMENT ONLY BY ANOTHER WRITTEN AGREEMENT.**

MISSOURI RESIDENTS: Oral agreements or commitments to loan money, extend credit or to forbear from enforcing repayment of a debt including promises to extend or renew such debt are not enforceable. To protect me (Borrower(s)) and you (Creditor) from misunderstanding or disappointment, any agreements we reach covering such matters are contained in this writing, which is the complete and exclusive statement of the agreement between us, except as we may later agree in writing to modify it.

NEVADA RESIDENTS: This is a loan for study.

NEW JERSEY RESIDENTS: The section headings of this **Note** are a table of contents and not contract terms. Portions of this **Note** with reference to actions taken to the extent of applicable law apply to acts or practices that New Jersey law permits or requires. In this **Note**, acts or practices (i) by you which are or may be permitted by *applicable law* are permitted by New Jersey law.

WASHINGTON RESIDENTS: Oral agreements or oral commitments to loan money, extend credit or to forbear from enforcing repayment of a debt are not enforceable under Washington law.

WISCONSIN RESIDENTS: (For purposes of this notice, the word *you* refers to the Borrower and the Cosigner, if applicable, not the **Lender**): **NOTICE TO CUSTOMER:**

DO NOT SIGN THIS PROMISSORY NOTE BEFORE YOU READ THE WRITING ON THE FOLLOWING PAGES, EVEN IF OTHERWISE ADVISED.

DO NOT SIGN THIS PROMISSORY NOTE IF IT CONTAINS ANY BLANK SPACES. YOU ARE ENTITLED TO AN EXACT COPY OF ANY AGREEMENT YOU SIGN.

YOU HAVE THE RIGHT AT ANY TIME TO PAY IN ADVANCE THE UNPAID BALANCE UNDER THIS AGREEMENT AND YOU MAY BE ENTITLED TO A PARTIAL REFUND OF THE FINANCE CHARGE.

For married Wisconsin residents, my signature on this **Note** confirms that this loan obligation is being incurred in the interest of my marriage or family. No provision of any marital property agreement (pre-marital agreement), unilateral statement under Section 766.59 or court decree under Section 766.70 adversely affects the interest of the **Lender** unless the **Lender**, prior to the time that the **Loan** is approved, is furnished with a copy of the agreement, statement, or decree or has actual knowledge of the adverse provision when the obligation to the **Lender** is incurred. If the **Loan** for which I am applying is granted, my spouse will also receive notification that credit has been extended to me.

15. Notice to Cosigner

You are being asked to guarantee this debt. Think carefully before you do. If the borrower does not pay the debt, you will have to pay it. Be sure you can afford to pay if you have to, and that you want to accept this responsibility. You may have to pay up to the full amount of the debt if the borrower does not pay. You may also have to pay late fees or collection costs as defined in numbered paragraph 9 above, which increase this amount. The lender can collect this debt from you without first trying to collect from the borrower. The lender can use the same collection methods against you that can be used against the borrower, such as suing you, garnishing you wages, etc. If this debt is ever in default, that fact may become a part of *your* credit record. This notice is not the contract that makes you liable for the debt.

FOR OBLIGORS COSIGNING IN IOWA, NEW YORK AND SOUTH CAROLINA: NOTICE TO COSIGNER; You agree to pay the debt identified below although you may not personally receive any property, goods, services or money. You may be sued for payment although the person who receives the property, goods, services, or money is able to pay. You should know that the Total of Payments listed below does not include finance charges resulting from delinquency, late charges, repossession or foreclosure costs, court costs or attorney's fees, or other charges that may be stated in the **Note** or contract. You will also have to pay some or all of these costs and charges if the **Note** or contract, the payment of which you are guaranteeing requires the borrower to pay such costs and charges. If this debt is ever in default, that fact may become a part of your credit record. This notice is not the **Note** or contract that obligates you to pay the debt. Read the **Note** or contract for the exact terms of your obligation.

IDENTIFICATION OF DEBT(S) YOU MAY HAVE TO PAY:

Name of Debtor: The Borrower and Cosigner identified on the first page of this **Note**.

Name of Creditor: The Credit Union identified on the first page of this **Note**, and its successors and assigns.

Date: If the **Loan** is disbursed by check, the date of the check. If the **Loan** is disbursed electronically, the date the Creditor transmits the funds to my former Creditor.

Kind of Debt: Private student loan.

Total of Payments: The **Loan** amount shown in the **Final Disclosure Statement**, plus interest and any **Loan Origination Fee** set forth in this **Note**.

FOR OBLIGORS COSIGNING IN VERMONT - NOTICE TO COSIGNER:

YOUR SIGNATURE ON THIS APPLICATION AND PROMISSORY NOTE MEANS THAT YOU ARE EQUALLY LIABLE FOR REPAYMENT OF THIS LOAN. IF THE BORROWER DOES NOT PAY, THE LENDER HAS A LEGAL RIGHT TO COLLECT FROM YOU.

FOR OBLIGORS COSIGNING IN CALIFORNIA: NOTICE TO COSIGNER (Traducción en Ingles Se Requiere Por La Ley): You are being asked to guarantee this debt. Think carefully before you do. If the borrower doesn't pay the debt, you will have to. Be sure you can afford to pay if you have to, and that you want to accept this responsibility. You may have to pay up to the full amount of the debt if the borrower does not pay. You may also have to pay late fees or collection costs, which increase this amount. The holder of the loan can collect this debt from you without first trying to collect from the borrower. The holder of the loan can use the same collection methods against you that can be used against the borrower, such as suing you, garnishing your wages etc. If this debt is ever in default, that fact may become part of your credit record. This notice is not the contract that makes you liable for the debt.

AVISO PARA EL FIADOR (Spanish Translation Required by Law):

Se le está pidiendo que garantice esta deuda. Piénselo con cuidado antes de ponerse de acuerdo. Si la persona que ha pedido este préstamo no paga la deuda, usted tendrá que pagarla. Esté seguro de que usted podrá pagar si sea obligado a pagarla y de que usted desea aceptar la responsabilidad.

Si la persona que ha pedido el préstamo no paga la deuda, es posible que usted tenga que pagar la suma total de la deuda, más los cargos por tardarse en el pago o el costo de cobranza, lo cual aumenta el total de esta suma.

El acreedor (financiero) puede cobrarle a usted sin, primeramente, tratar de cobrarle al deudor. Los mismos métodos de cobranza que pueden usarse contra el deudor, podrán usarse contra usted, tales como presentar una demanda en corte, quitar parte de su sueldo, etc. Si alguna vez no se cumpla con la obligación de pagar esta deuda, se puede incluir esa información en la historia de crédito de usted. Este aviso no es el contrato mismo en que se le echa a usted la responsabilidad de la deuda.

Delyone de Paula Canedo Filho

Borrower printed Date

Cosigner printed Date

Borrower signed Date

Cosigner signed Date

Designation of Authorized Representative Form

Student Borrowers can designate an individual to have the legal authority to act on behalf of the student borrower with respect to this private education loan in the event of the death of the student borrower. This designation must include the borrower's and representative's handwritten signatures.

DESIGNATION OF AUTHORIZED REPRESENTATIVE BY STUDENT BORROWER

I, _____, request the following person:
Print Name of Student Borrower

_____ to be my authorized representative for
Print Name of Authorized Representative

Application identification number _____.
Application Identification Number

I understand that I, or the designated authorized representative, may terminate this designation in writing at any time by contacting the servicer of the loan at the address on any billing statement you may send to me.

Signature of Student Borrower

Date of Birth (For Identification Purposes)

Date

STATEMENT OF DESIGNATED REPRESENTATIVE

I believe the above-named individual understands the nature and consequences of his/her acts and is able to exercise his/ her own will. I certify the above-named individual made the decision to designate me as his/her representative under no threat or duress of any kind.

I certify under penalty of perjury, the information I provide is correct and complete to the best of my knowledge.

Signature of Authorized Representative

Date